

		the instant action. (See Reply at pp. 2, 9, fn. 5.) In their reply, Seller Defendants state that this Court previously “opined the factual conspiracy issues had, in fact, been adjudicated in Sellers’ favor” in the Missouri Action, thereby implying that the Court had already decided or ruled that the conspiracy issues had already been decided as applied to Plaintiff’s <i>direct</i> claims in this case. (<i>Id.</i>) But the Court explicitly stated that it did not “want to get too far down the path because [the Court did not [have a motion in front of [the Court] on [whether conspiracy has been adjudicated],” and the Court also clarified that when the Court “was really just mainly trying to understand some of the theories as to how this case could still be viable,” by “this case,” the Court meant “very specific[ally] . . . the MO Murrayfield . . . derivative claims given that judgment.” (ROA #2941, Exh. 1, 12:26-13:6.) The Court’s statements are not amenable to the characterization provided by the Seller Defendants. In short, Logsdon, Southside, and Hill have also failed to demonstrate that they are entitled to “dismissal” or judgment on the pleadings in this case because of res judicata or collateral estoppel based upon the Missouri Action. Plaintiff Salvation shall give notice.
116	Gerlette vs. Altman Specialty Plants, LLC 2023-01324651	Motion for Final Approval of Class/PAGA settlement Plaintiff Alicia Esquivel Gerlette’s Motion for Final Approval of Class Action and PAGA Settlement is CONTINUED September 24, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 7/29/2022, Plaintiff Alicia Esquivel Gerlette, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant Altman Specialty Plants, LLC, which Plaintiff dismissed without prejudice after she acquiesced to Defendant’s demand that she submit a demand for individual arbitration. After Defendant failed to timely wire payment of the initial arbitration invoice, Plaintiff withdrew her individual arbitration demand and refiled her class action complaint on 5/10/2023 in the instant action. (ROA #2.) On 7/18/2023, Defendant answered the complaint. (ROA #16.) The operative complaint is the second amended complaint (SAC), filed on 6/25/2025 per the parties’ stipulation and the Court’s order, which alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #97.) On 6/26/2025, Plaintiff filed a Motion for Preliminary Approval of the Class Action and PAGA Settlement. (ROA #104.) On 2/26/2026, at the 3rd hearing on the matter, the Court granted the motion. (ROA #153.) On 4/8/2026, the Court entered the order granting the motion. (ROA #159.)

On 6/23/2026, Plaintiff filed the instant Motion for Final Approval of Class and PAGA Action Settlement, Class Representative Enhancement Payment, Attorneys' Fees, and Costs. (ROA #166.) The motion seeks approval of the parties' Stipulation of Settlement ("Settlement Agreement"), attached as Exhibit G to Plaintiff's counsel's declaration at ROA #147, which provides for the settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount ("GSA") of \$500,000. The GSA includes \$50,000 allocated for PAGA penalties.

The Court concludes that an attorneys' fee award totaling \$150,000 or 30% of the GSA, constituting a 1.04 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action's contingent nature and the results achieved.

The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage, copying, or Westlaw research costs. Therefore, counsel should deduct \$356.05 from the requested amount for costs.

The Court further concludes that a Class Representative Enhancement Award of \$5,000 is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about Plaintiff's contribution to the case.

Additionally, the Court has identified the following issue with the moving papers, which must be addressed by Class Counsel before the Court will sign the Order Granting Final Approval and Judgment:

1. The administrator's declaration filed in support of the motion (ROA #172) attested to two different total pay periods: In ¶ 12 of the administrator's declaration, the administrator attests the escalator clause was not triggered because there are only 166,136 pay periods as advised by Defendant. But in ¶ 15 of the administrator's declaration, the administrator attests that the 5,312 Aggrieved Employees worked a total of 215,550 pay periods. The administrator must resolve this discrepancy, confirm whether the escalator clause has been triggered, and confirm the correct average, high, and low payments that Aggrieved Employees will receive based on the correct number of pay periods.
2. Class Counsel must attest as to whether there is a fee-splitting agreement with any other counsel, or confirm there is none.

Class Counsel must also provide a revised [Proposed] Order of Final Approval and Judgment with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.

The Court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's

		website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
117	Heath vs. Rainbow Home Care Services, Inc. 2024-01444583	Motion for Final Approval of Class/PAGA Settlement Plaintiff David Heath's Motion for Final Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 12/6/2024, Plaintiff David Heath, individually and on behalf of other members of the general public similarly situated, filed a class action and PAGA complaint against Defendant Rainbow Home Care Services, Inc., alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #2.) On 6/27/2025, Plaintiff filed a Motion for Preliminary Approval of the Class action and PAGA settlement. (ROA #37.) On 2/19/2026, at the second hearing on the matter, the Court conditionally granted the motion. (ROA #95.) On 2/27/2026, the Court entered the signed order granting the motion. (ROA #100.) On 6/25/2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #117.) On 7/9/2026, Plaintiff submitted an updated declaration by the administrator. (ROA #121.) The motion seeks approval of the Amended Joint Stipulation of Class Action and PAGA Settlement ("Settlement Agreement"), which provides for the settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount ("GSA") of \$950,000. The GSA includes \$75,000 allocated for PAGA penalties. The Class is comprised of 697 Class Members, defined as "all current and former hourly-paid or non-exempt employees of Defendant within the State of California at any time during the Class Period." The Class Period is 12/6/2020 through 7/11/2025. The settlement also includes 434 Aggrieved Employees, defined as "all current and former hourly-paid or non-exempt employees of Defendant within the State of California at any time during the PAGA Period." The PAGA Period is 9/11/2023 through 7/11/2025.